

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

LUIS MATIAS,

Index No.:

Plaintiff,

Plaintiff designates BRONX COUNTY as
the place of Trial.

-against-

The basis of venue is: CPLR § 504(3);
Location of Incident and Plaintiff's
Residence

CITY OF NEW YORK, POLICE OFFICER
CALVIN BLACK, and POLICE OFFICERS
JOHN DOES, individually and in their official
capacities.

SUMMONS

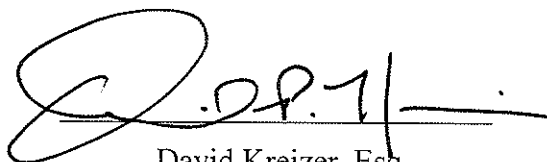
Defendant.

TO THE ABOVE-NAMED DEFENDANTS:

You are hereby summoned to answer the verified complaint in this action and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear to answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

Dated: New York, New York

May 29, 2013



David Kreizer, Esq.
Fisher, Byrialsen & Kreizer, PLLC
Attorney for Plaintiff
291 Broadway, Suite 709
New York, NY 10007
(212) 962-0848

Defendants' Addresses:

City of New York
100 Church Street
New York, NY 10007

Police Officer Calvin Black
44th Precinct
2 East 169 Street
Bronx, NY, 10452

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

LUIS MATIAS,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER CALVIN BLACK, and POLICE
OFFICERS JOHN DOES, individually and in their official capacities,

Defendants.

SUMMONS

FISHER, BYRIALSEN & KREIZER, PLLC
Attorneys for: Plaintiff
LUIS MATIAS
291 Broadway, Suite 709
New York, NY 10007
(212) 962-0848

Service of a copy of the within is hereby admitted

Dated:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

LUIS MATIAS,

Index No.:

Plaintiff,

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, POLICE OFFICER
CALVIN BLACK, and POLICE OFFICERS
JOHN DOES, individually and in their official
capacities.

Defendants.

Plaintiff, LUIS MATIAS, by and through his attorneys, **Fisher, Byrialsen &
Kreizer, PLLC**, complaining of the defendants herein, respectfully shows the Court and alleges:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1988, for the wrongful acts of Defendants THE CITY OF NEW YORK and POLICE OFFICER CALVIN BLACK, POLICE OFFICER JOHN DOES, as Officers of the New York City Police Department, acting under color of state law and pursuant to their authority, in violation of Plaintiff's rights secured by the Civil Rights Act of 1871, 42 U.S.C. §§ 1981, 1983, 1985 and 1988; by the United States Constitution, including its Fourth, Fifth, Eighth, and Fourteenth Amendments; and by the laws and Constitution of the State of New York.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1988, and the Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution, and the constitutional, statutory, and common laws of the State of New York.

VENUE

3. The basis of venue is the place of the occurrence.

NOTICE OF CLAIM

4. Plaintiff Luis Matias filed a Notice of Claim on April 24, 2012, with the Comptroller of the City of New York within 90 days of the events complained of herein. More than 30 days have elapsed since the filing of the Notice of Claim, and adjustment or payment thereof has been neglected or refused.

TRIAL BY JURY

5. Plaintiff demands a trial by jury on each and every one of his claims as pleaded herein.

PARTIES

6. At all times relevant hereto Plaintiff Luis Matias was and is a citizen of the United States and was residing in the Bronx, New York at the time of the incident.

7. At all times relevant hereto defendant The City of New York (hereinafter, "NYC") was and is a municipality of the State of New York and owns, operates, manages, directs, and controls the New York City Police Department, which employs the other named Defendants.

8. At all times relevant to this action, Defendants Police Officer Calvin Black and Police Officers John Does are and were police officers employed by the New York City Police Department (hereinafter, "NYPD"), and acting under color of state law. They are being sued in both their individual and official capacities.

9. At all times relevant hereto and in all their actions described herein, Defendants, Police Officer Calvin Black and Police Officers John Does were acting under color of statutes, ordinances, regulations, policies, customs, and usages of the NYPD and NYC, pursuant to their authority as employees, servants, and agents of the NYPD within the scope of employment and incidental to their otherwise lawful duties and functions as employees, servants, agents, and police officers.

10. NYC was responsible for the hiring, training, supervision, discipline, retention, and promotion of the police officers, sergeants, and/or employees of the NYPD. They are being sued both in their individual and official capacity.

FACTS

11. On March 6, 2012, at approximately 6:40 p.m., Plaintiff was double parked with his hazard lights on while he was waiting for his brother at 308 E. 169th Street in the Bronx, NY.

12. Plaintiff's friend saw him in the car and stopped to say hello.

13. Plaintiff invited his friend into the car to talk while plaintiff waited for his brother.

14. Plaintiff noticed a police vehicle pull up behind him, so he moved his car from where he was double parked to a parking spot on 169th Street and Findley Avenue, so that the officers could pass him.

15. Plaintiff was not doing anything apparently illegal or suspicious at the time.

16. After Plaintiff parked his vehicle on 169th Street and Findley Avenue, he noticed the police car had followed his vehicle and that the officer was approaching the driver side window of his car.

17. The officer advised Plaintiff that he did not pull out quickly enough from the double

parked spot and asked for his license and registration.

18. The officer then told Plaintiff to exit the vehicle and Plaintiff asked why he had to get out.

19. A second officer then told Plaintiff to “get the fuck out of the car” and reached through the driver side window and punched Plaintiff in the face.

20. A third officer then broke the passenger side window of the car with his baton and pulled Plaintiff’s friend, who was seated in the passenger seat, out of the car.

21. Additional police officers arrived at the scene and Plaintiff was pulled out of his car and dragged to the middle of the street.

22. Approximately 15-20 officers surrounded Plaintiff and began viciously punching him with their fists, stomping on him with their boots, and beating him with various hard objects.

23. After the beating, which lasted at least five minutes, each of Plaintiff’s arms were grabbed by officers and another officer hit him in the eye with a baton.

24. The blow from the baton caused Plaintiff to pass out.

25. When Plaintiff came to, he felt blood dripping down his face and the officers then handcuffed him and threw him into a police vehicle.

26. Plaintiff was then transported to the 44th Precinct.

27. After Plaintiff was taken from the scene, Plaintiff’s brother arrived and observed the police officers breaking the car windows to Plaintiff’s car with their batons.

28. When Plaintiff was at the 44th precinct, he immediately requested medical attention, however, he was held in a cell at the precinct for approximately 45 minutes until an ambulance arrived.

29. As Plaintiff was being transported to the ambulance from the precinct his brother

arrived and observed Plaintiff's extreme injuries.

30. Plaintiff was transported to Bronx Lebanon Hospital and was diagnosed with an orbital floor fracture and a concussion.

31. While Plaintiff was at the hospital he was throwing up blood and required stitches to stop the bleeding from the lacerations under his left eye.

32. While Plaintiff was at the hospital he was interviewed by two officers from Internal Affairs at approximately 12:00 a.m. on March 7, 2012.

33. Plaintiff was interviewed by two additional Internal Affairs officers at approximately 5 a.m. on March 7, 2012.

34. Plaintiff was eventually taken to Central Booking at approximately 7 p.m. on March 7, 2012 where he was detained for approximately 24 hours before he was arraigned.

35. Plaintiff was arraigned on charges of Criminal Possession of a Controlled Substance in the Third Degree, Fourth Degree Fifth Degree, and Seventh Degree, Attempted Robbery in the Third Degree and Resisting Arrest.

36. Plaintiff was released on a \$3,500 cash bail.

37. Follow up medical treatment for Plaintiff's physical injuries from the assault by the police officers has been extensive and continues through the present date.

38. Plaintiff's initial treatment revealed that the size of the left floor fracture warranted repair, however, due to Plaintiff's pre-existing loss of sight in his right eye, it was recommended that Plaintiff pursue medical management to avoid risks associated with vision loss as a result of surgery to repair the orbital floor fracture in the left eye orbit.

39. Plaintiff's most recent medical exam has revealed deviated nasal septum status post left facial fracture and septal deviation. There was also noted opacification of the ethmoid

sinuses as well as herniation of orbital contents on the left into the maxillary sinus, chronic fractures of the bilateral nasal bones with slight leftward deviation of the nasal bridge, and a chronic left orbital floor fracture with herniation of orbital fat into the superior left maxillary sinus.

39. Plaintiff has endured permanent numbness to his cheek and upper lip, and he suffers from continued blurry vision, tearing from his eyes, eye pain and nasal drip.

40. Plaintiff's prosecution in this case has continued through the present date.

41. On or about April 24, 2012 and within ninety (90) days of the incident, a Notice of Claim on behalf of Plaintiff was served upon NYC.

42. At least thirty (30) days have elapsed since said demand and/or claim upon which this action is in part predicated was presented to NYC for adjustment and NYC has neglected and/or refused to adjust and/or make payment.

43. This action is commenced within one (1) year and ninety (90) days of the occurrence herein.

**FIRST CLAIM FOR RELIEF:
DEPRIVATION OF FEDERAL CIVIL RIGHTS**

44. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

45. All of the aforementioned acts of Defendants, their agents, servants, and employees were carried out under color of state law.

46. All of the aforementioned acts deprived Plaintiff of the rights, privileges, and immunities guaranteed citizens of the United States by the Fourth, Fifth, Eighth, and Fourteenth Amendments to the Constitution of the United States and in violation of 42 U.S.C. § 1983.

47. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto.

48. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of NYC and the NYPD, all under the supervision of ranking officers of said department.

49. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure, or rule of his/her respective municipality/authority, which is forbidden by the Constitution of the United States.

50. By these actions, these Defendants have deprived Plaintiff of rights secured by the Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. §1983; and by the laws and Constitution of the State of New York, for which the Defendants are individually and jointly liable.

SECOND CLAIM FOR RELIEF:
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

51. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

52. The degree of force used by Defendants was excessive, unreasonable, and unwarranted.

53. Defendants' actions were intentional, willful, malicious, egregious, grossly reckless and negligent, unconscionable, and unprovoked.

54. As a result of the excessive force and brutality, Plaintiff sustained substantial pain

and injury to his left eye, a laceration below his left eyelid, substantial pain and injury to his nose, head, hand, and persistent and possibly permanent nerve damage and resulting numbness to his left cheek. Plaintiff also sustained bruises and abrasions about his head and body and has endured serious emotional and psychological distress.

**THIRD CLAIM FOR RELIEF:
ASSAULT AND BATTERY**

55. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

56. By the aforementioned actions, the Defendants did inflict assault and battery upon the Plaintiff. The acts and conduct of the Defendant Police Officers were the direct and proximate cause of injury and damage to the Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

57. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific bodily injury, pain and suffering, great humiliation, mental anguish, costs, and expenses and were otherwise damaged and injured.

58. All of the aforementioned acts of the Defendants constituted assault and battery under the laws of the State of New York and the Defendants are liable said damage.

**FOURTH CLAIM FOR RELIEF:
FALSE ARREST**

59. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

60. As a result of Defendants' aforementioned conduct, Plaintiff was subject to an illegal, improper, and false seizure and arrest by the Defendants and taken into custody and caused to be

falsely imprisoned, detained, confined, incarcerated, and prosecuted by the Defendants in criminal proceedings, without any probable cause, privilege, or consent.

61. As a result of his false arrest, Plaintiff was subjected to humiliation, mental anguish, ridicule, and disgrace and was deprived of his liberty. Plaintiff was discredited in the minds of many members of the community.

62. All of the aforementioned acts of the Defendants constituted false arrest under the laws of the State of New York and the Defendants are liable for said damage.

**FIFTH CLAIM FOR RELIEF:
FALSE IMPRISONMENT**

63. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

64. As a result of his false imprisonment, Plaintiff was subjected to humiliation, ridicule, mental anguish and disgrace and was deprived of his liberty. Plaintiff was discredited in the minds of many members of the community.

65. All of the aforementioned acts of the Defendants constituted false imprisonment under the law of the State of New York and the Defendants are liable said damage.

**SIXTH CLAIM FOR RELIEF:
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

66. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

67. Defendant police officers engaged in extreme and outrageous conduct beyond all possible bounds of decency when they beat harassed and threatened Plaintiff.

68. Defendants' extreme and outrageous conduct was intended to inflict severe distress upon Plaintiff.

69. The Defendant officers' outrageous conduct did inflict severe distress upon Plaintiff, which caused Plaintiff to suffer anxiety and mental anguish.

70. All of the aforementioned acts of the Defendants constituted intentional infliction of emotional distress under the law of the State of New York and the Defendants are liable for said damage.

MALICIOUS PROSECUTION

71. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

72. By the actions described above the defendants maliciously and without probable cause, prosecuted the Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the Plaintiff and violated her statutory and common law right as guaranteed by the laws and constitution of the State of New York.

73. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered great humiliation, anguish, costs and expenses and was otherwise damaged and injured.

SEVENTH CLAIM FOR RELIEF: MUNICIPAL LIABILITY

74. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

75. The acts complained of herein were carried out by the Defendant officers in their capacities as police officers, employees and officials pursuant to the customs, policies, usages, practices, procedures, and rules of NYC and the NYPD, all under the supervision of ranking

officers of said departments.

76. Prior to March 6, 2012, NYC and NYPD developed and maintained policies or customs exhibiting deliberate indifference to the Constitutional rights of persons in NYC, which caused the violation of Plaintiff's rights.

77. It was the policy and/or custom of NYC and NYPD to inadequately and improperly train and supervise its police officers, including the defendant officers, thereby failing to adequately discourage further constitutional violations on the part of its police officers.

78. It was the policy and/or custom of NYC and NYPD to inadequately and improperly investigate complaints of misconduct against police officers filed by persons in police custody, and acts of misconduct were instead tolerated by NYC, including, but not limited to the following incidents: assault and battery, harassment, negligence, intentional infliction of emotional distress and deliberate indifference to medical needs.

79. The foregoing customs, policies, usages, practices, procedures, and rule of NYC and the NYPD constituted deliberate indifference to the safety, well-being, and constitutional rights of Plaintiff.

80. The foregoing customs, policies, usages, practices, procedures, and rule of NYC and the NYPD were the proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.

81. The foregoing customs, policies, usages, practices, procedures, and rule of NYC and the NYPD were the moving force behind the constitutional violations suffered by Plaintiff as alleged herein.

82. As a result of the above described policies and customs, police officers of NYPD, including the defendant officers, believed that their actions would not be monitored by

supervisory officers and that their own misconduct would not be investigated or sanctioned, but instead would be tolerated.

83. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of Plaintiff.

84. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate officers and were directly responsible for the violation of Plaintiff's constitutional rights.

85. Defendants NYC, as municipal policymakers in the training and supervision of Defendant police officers/employees, have pursued a policy and custom of deliberate indifference to the rights of persons in their domain who suffer violations of their freedom from deprivation of Liberty without Due process of law in violation of the Fourth, Fifth, Eighth, and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. § 1983, and the Constitution and laws of the State of New York.

86. All of the foregoing acts by Defendants deprived Plaintiff of federally protected rights, including, but not limited to, the right:

- a. Not to be deprived of liberty without due process of law;
- b. To be free from unreasonable search and seizure under the Fourth and Fourteenth Amendments to the United States Constitution;
- c. To be protected against violations of his civil and constitutional rights;
- d. Not to have cruel and unusual punishment imposed upon him; and
- e. To receive equal protection under the law.

**SIXTH CLAIM FOR RELIEF:
CONSPIRACY TO INTERFERE WITH CIVIL RIGHTS
UNDER 42 U.S.C. § 1983, 1985, 1986**

87. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

88. All the defendants, acting with each other individually and on behalf of and under the auspices and control of the City, and under color of law, conspired to injure plaintiff in his person and property and deprive plaintiff of his First, Fourth, Fifth and Fourteenth Amendment rights. The defendants jointly caused such deprivation of rights by acting in concert to disseminate false information concerning the plaintiff and by disseminating false information that lacked any reasonable basis or probable cause to support it that the plaintiff committed a crime, and/or to charge him with a crime, and/or to arrest him.

89. The defendants further deprived the plaintiff of his due process rights specifically by conspiring to and assisting in the arrest of the plaintiff without probable cause and participating in the prosecution of plaintiff; by denying the plaintiff his First, Fourth, Fifth and Fourteenth Amendment rights via a conspiracy to deprive the plaintiff of his liberty and taking his property without due process and compensation; conspiring together to cover up the misconduct they committed; and preventing the plaintiff from being compensated for his wrongful arrest, for the loss of his constitutional rights, the loss of his job and for the emotional harm he incurred.

90. The aforesaid actions by the defendant police officers were done pursuant to an official municipal policy or custom of the city and state, which policy involved the indiscriminate detention, interrogation, intimidation, denial of medical attention, excessive force and prosecution of individuals who were not engaged in criminal conduct, and for the purpose of thwarting the fair administration of justice.

91. The defendants' failure to stop these wrongful acts and actions constitutes a breach of their duty to do so under 42 U.S.C. § 1986.

92. The defendants knew or should have known that the misconduct and false and fabricated accusations and/or charges against plaintiff were violative of his First, Fourth, Fifth and Fourteenth Amendment rights to due process and equal protection, and were tantamount to unequal protection under the law, in violation of the plaintiff's fundamental rights under the Constitution.

93. Said defendants had the power to prevent the continued due process violations against the plaintiff, yet had failed to prevent the dissemination of false information and/or to dismiss the fabricated accusations and charges against plaintiff, and/or to protect the plaintiff from the unwarranted and potential harm and penalties of said charges.

94. Defendants herein, their agents, servants and employees, motivated in part by racial and/or ethnic animus, conspired to deprive plaintiff of his federal civil and constitutional rights, in violation of 42 U.S.C. § 1985 and the laws and Constitution of the State of New York

95. All of the aforementioned acts of Defendants constituted a violation of Plaintiff's civil rights provided to him under the United States Constitution and 42 U.S.C. § 1983, 1985, and 1986 and the laws and Constitution of the State of New York

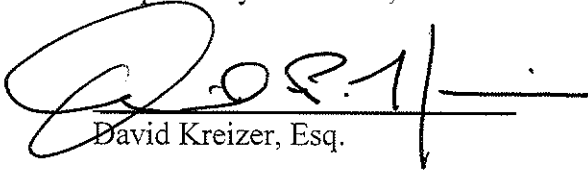
PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands judgment against the Defendants as follows:

1. A monetary sum that exceeds the jurisdictional limits of all lower courts that might otherwise have jurisdiction herein;
2. The costs and disbursements of this action; and
4. Such other and further relief as this Court deems just and proper.

DATED: New York, New York
 May 29, 2013

Respectfully submitted,



David Kreizer, Esq.

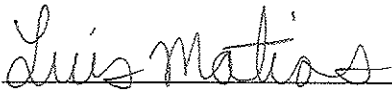
Fisher, Byrialsen & Kreizer, PLLC
Attorney for Plaintiff
291 Broadway, Suite 709
New York, New York 10007
(212) 962-0848

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
)SS.:
COUNTY OF NEW YORK)

LUIS MATIAS being duly sworn, deposes and says:

That deponent is the plaintiff in the within action; and deponent has read the foregoing Summons and Verified Complaint and knows the contents thereof; that the same is true except for as to those matters therein stated to be upon information and belief, and as to those matters, deponent believes them to be true.

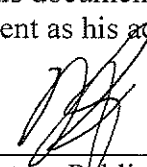


LUIS MATIAS

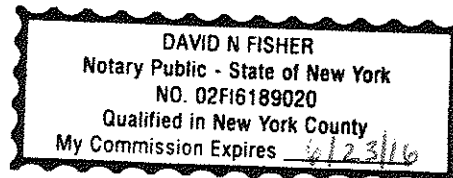
STATE OF NEW YORK)
)SS.:
COUNTY OF NEW YORK)

I CERTIFY that on May 29 2013, Luis Matias, personally came before me and acknowledged under oath, to my satisfaction, that this person:

- (a) is named in and personally signed this document; and
- (b) signed, sealed, delivered this document as his act and deed.



Notary Public



SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

LUIS MATIAS,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER CALVIN BLACK, and POLICE
OFFICERS JOHN DOES, individually and in their official capacities,

Defendants.

VERIFIED COMPLAINT

FISHER, BYRIALSEN & KREIZER, PLLC

Attorneys for: Plaintiff

LUIS MATIAS

291 Broadway, Suite 709

New York, NY 10007

(212) 962-0848

Service of a copy of the within is hereby admitted

Dated:
